

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Edison	Team: Squad #6	CCRB Case #: 202201699	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/11/2022 8:30 PM	Location of Incident: 19th Precinct stationhouse (located at 153 East 67th Street)	Precinct: 19	18 Mo. SOL 9/11/2023	EO SOL 9/11/2023	
Date/Time CV Reported Fri, 03/11/2022 9:47 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/16/2022 4:33 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Yanvier Morel	23740	968648	019 PCT
2. SGT Tyishah Williams	05551	941058	019 PCT
3. LT Kevon Sample	00000	935679	019 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Eli Anopolsky	02279	970388	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Tyishah Williams	Abuse: Sergeant Tyishah Williams threatened to arrest § 87(2)(b)	
B.SGT Tyishah Williams	Abuse: Sergeant Tyishah Williams threatened to arrest § 87(2)(b)	
C.SGT Tyishah Williams	Force: Sergeant Tyishah Williams used physical force against § 87(2)(b)	
D.PO Yanvier Morel	Force: Police Officer Yanvier Morel used physical force against § 87(2)(b)	
E.SGT Tyishah Williams	Force: Sergeant Tyishah Williams used physical force against § 87(2)(b)	
F.LT Kevon Sample	Abuse: Lieutenant Kevon Sample forcibly removed § 87(2)(b) to the hospital.	
G.LT Kevon Sample	Abuse: Lieutenant Kevon Sample forcibly removed § 87(2)(b) to the hospital.	

Case Summary

On March 11, 2022, Lt. Kevon Sample of the 19th Precinct filed this complaint to IAB on behalf of § 87(2)(b) and § 87(2)(b). On March 16, 2022, it was received at the CCRB via IAB Log #2022-05547. Lt. Sample has since been promoted to Cpt. Sample of the 32nd Precinct following this incident.

On March 11, 2022, at approximately 7:30 p.m., § 87(2)(b) went to the 19th Precinct Stationhouse with her sister, § 87(2)(b) to file a report against a man § 87(2)(b). Sgt. Tyishah Williams and PO Yanvier Morel of the 19th Precinct took a statement from § 87(2)(b) about the incident, but she and § 87(2)(b) disagreed with the classification of the crime and requested to withdraw the complaint. Sgt. Williams refused and told them that they needed to leave the stationhouse, or they would be arrested for trespassing (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). When they refused to leave, Sgt. Williams and PO Morel grabbed them by the upper arms and pushed them into the elevator and then out the front entrance (**Allegations C, D and E: Force, § 87(2)(g)**). One of the sisters called 911, and EMS responded. Lt. Sample came outside with PO Eli Anopolsky of the 19th Precinct and several other officers, and he instructed the officers to place § 87(2)(b) and § 87(2)(b) in handcuffs. They handcuffed the sisters and brought them into the ambulance. PO Anopolsky came into the ambulance, and under the authority of Lt. Sample, they were taken § 87(2)(b) (**Allegations F and G: Abuse of Authority, § 87(2)(g)**). They were subsequently released from the hospital after receiving psychological evaluations.

BWC was obtained and is located in IAs #28, 29, 32, and 36 (BR 01-04). Stationhouse footage was obtained and is located in IAs #118 and 119 (BR 05-06).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Tyishah Williams threatened to arrest § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Tyishah Williams threatened to arrest § 87(2)(b)

Allegation (C) Force: Sergeant Tyishah Williams used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Yanvier Morel used physical force against § 87(2)(b)

Allegation (E) Force: Sergeant Tyishah Williams used physical force against § 87(2)(b)

Sgt. Williams' second BWC (BR 01), beginning at the 1:15 minute mark, showed Sgt. Williams tell § 87(2)(b) and § 87(2)(b) "So we're going to leave now. Are you ready to leave ma'am?" At the 1:40 minute mark, § 87(2)(b) said that she was not going to leave, and Sgt. Williams replied, "We are going leave this precinct because we are done here ma'am." At the 3:18 minute mark, Sgt. Williams said, "So you can voluntarily or involuntarily leave. Which one would you like to do?" At the 4:45 minute mark, Sgt. Williams told them, "If you do not leave, you will then be arrested." The sisters asked what they would be arrested for, and Sgt. Williams replied, "For trespassing ma'am. I'm asking you to leave." At the 5:50 minute mark, Sgt. Williams told PO Morel, "We're going to have to physically escort these women out." At the 6:15 minute mark, § 87(2)(b) walked down the hallway inside the precinct, and Sgt. Williams immediately followed behind her. Sgt. Williams grabbed § 87(2)(b) by the upper arm and guided towards the elevator. At the 7:28 minute mark, § 87(2)(b) stepped out of the elevator on the first floor, and Sgt. Williams grabbed her by the upper arm and the elbow. Sgt. Williams pulled § 87(2)(b) towards the front entrance and pushed her forward. Sgt. Williams then grabbed § 87(2)(b).

§ 87(2)(b) by the upper arm and guided her towards the front entrance. At the 8:05 minute mark, § 87(2)(b) stood right outside the stationhouse entrance and told Sgt. Williams, “You kicked me out of the police department for no reason. I didn’t touch anyone.” Sgt. Williams replied, “You were being disorderly after we asked you multiple times to leave.”

Stationhouse footage of the front desk (BR 05), beginning at the 0:20 second mark, showed PO Morel grab § 87(2)(b) by the shoulder after Sgt. Williams pushed her in the back towards him. § 87(2)(b) turned around to face PO Morel, and he guided her backwards towards the front entrance with his hand holding her upper arm.

Stationhouse footage of the lobby entrance (BR 06) beginning at the 0:25 second mark, showed PO Morel holding § 87(2)(b) by the upper arm and guiding her towards the front door. When they reach the front door, PO Morel walked in front of § 87(2)(b) and pulled her by the arm out of the front entrance.

§ 87(2)(b) testified (BR 07) that she and § 87(2)(b) went to the 19th Precinct to file a Domestic Incident report. Sgt. Williams brought her and § 87(2)(b) upstairs to take her complaint. They sat in an open hallway upstairs instead of going into a private room. PO Morel joined Sgt. Williams and appeared to be taking notes as § 87(2)(b) provided her statement about the incident. Sgt. Williams filled out the report and explained that the incident was determined to be harassment. § 87(2)(b) started to argue with Sgt. Williams about the crime classification, and § 87(2)(b) asked to withdraw her complaint, but Sgt. Williams refused. Sgt. Williams told § 87(2)(b) and § 87(2)(b) that they needed to leave the stationhouse, but § 87(2)(b) replied that she did not want to leave until her complaint was withdrawn. Sgt. Williams replied that they would be arrested for trespassing if they did not leave, and she told PO Morel to help escort them out of the stationhouse. PO Morel grabbed § 87(2)(b) by the shoulder and pushed her into the elevator, and Sgt. Williams did the same to § 87(2)(b). When they reached the lobby, Sgt. Williams grabbed § 87(2)(b) by the shoulder and pushed her outside through the stationhouse front entrance. § 87(2)(b) was also brought outside at the same time, but § 87(2)(b) did not see how it happened. § 87(2)(b)'s shoulder was in a lot of pain from the incident, and Sgt. Williams and PO Morel went back inside the stationhouse. Neither § 87(2)(b) nor § 87(2)(b) obtained medical attention for any physical injuries.

§ 87(2)(b) did not respond to contact attempts from the investigation and was deemed unavailable.

Sgt. Williams testified (BR 08) that she and PO Morel brought § 87(2)(b) and § 87(2)(b) upstairs to take a statement about their complaint. Sgt. Williams explained that she would prepare a complaint report for harassment, but that she would also prepare a domestic incident report. § 87(2)(b) argued with Sgt. Williams about the correct charge that should be noted in the report. As they did not agree, § 87(2)(b) asked Sgt. Williams to shred all the documents or give her the ones that had her name on it. Sgt. Williams replied that the documents were official legal documents that needed to be kept for NYPD records. § 87(2)(b) became visibly upset and said that she was not leaving until she was given all the paperwork. At that point, Sgt. Williams decided that it was time for the sisters to leave because a statement had been obtained and they were not listening to Sgt. Williams. She asked them to leave approximately seven times, but they refused each time. After the third time, Sgt. Williams said that they would be arrested for trespassing if they continued refusing to leave. She also told them that they would be physically escorted out of the stationhouse if they did not leave on their own. § 87(2)(b) started walking away from Sgt. Williams and went down the hallway towards a restricted area of the stationhouse. Sgt. Williams approached § 87(2)(b) grabbed her by the forearm, and guided her into the

elevator. At the same time, PO Morel grabbed § 87(2)(b) by the forearm and escorted her into the same elevator. They escorted them out of the stationhouse, but the women remained standing outside the front entrance. Sgt. Williams told them that they were blocking the entrance and would be arrested if they did not leave. At that point, they could have been arrested for disorderly conduct. Sgt. Williams grabbed § 87(2)(b) by the arm again and brought her down to the bottom outside steps. Sgt. Williams released her at that point because it was no longer NYPD property, and she went back inside.

PO Morel's testimony (BR 09) is consistent with Sgt. Williams' testimony with no exceptions noted.

PO Anopolsky testified (BR 10) that he did not observe or have any interaction with § 87(2)(b) and § 87(2)(b) until after they were already outside the stationhouse. He learned at some point that the sisters refused to leave the stationhouse and had to be forcibly removed, but he did not remember who told him that or when he was told.

Lt. Sample testified (BR 11) that he did not know what happened upstairs between Sgt. Williams and the sisters, but he described them as being loud and combative towards Sgt. Williams when they exited the elevator on the first floor. The sisters appeared to be resisting as Sgt. Williams escorted them out of the stationhouse, and Lt. Sample heard the sisters repeatedly say that they were being removed because they were Russian. At the time of the incident, Lt. Sample did not know why they were being removed from the stationhouse, but he was told later that it was because they were disruptive upstairs and refused multiple requests from Sgt. Williams to leave on their own.

A person is guilty of criminally trespassing in or upon a premises that is open to the public when they defy a lawful order made by an authorized custodian not to enter or remain there, NYS CLS Penal Law §140.00 (BR 12). A police officer's order to a civilian to leave a precinct stationhouse suffices to revoke the civilian's license to lawfully remain there because a police officer is considered to be a custodian of the stationhouse premises, People v. Reape, 22 Misc. 3d 615 (2008) (BR 13).

When an officer must gain compliance of an uncooperative subject, the officer is justified in applying no more than the reasonable force necessary to gain control of the subject only after the use of de-escalation techniques fail and the officer advised the subject that physical force will be used prior to applying it, Patrol Guide Procedure 221-02 (BR 14).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Allegation (F) Abuse of Authority: Lieutenant Kevon Sample forcibly removed § 87(2)(b) to the hospital.

Allegation (G) Abuse of Authority: Lieutenant Kevon Sample forcibly removed § 87(2)(b) to the hospital.

Sgt. Williams' first BWC (BR 02), beginning at the 1:00 minute mark, showed § 87(2)(b) providing a statement to Sgt. Williams about the incident involving man she had been intimate with. The conversation lasted approximately 20 minutes, and § 87(2)(b) appeared visibly upset and began crying several times throughout the video. Both § 87(2)(b) and § 87(2)(b) appeared to speak clearly and coherently throughout the entire conversation.

Lt. Sample's BWC (BR 03), beginning at the 1:00 minute mark, showed two EMTs tell Lt. Sample that § 87(2)(b) and § 87(2)(b) refused to go in the ambulance. At the 7:05 minute mark, a FDNY labeled ambulance arrived outside the stationhouse. At the 7:20 minute mark, the male EMT told the female EMT to go speak with their boss, and she walked over to the FDNY ambulance window and spoke to the individual inside for approximately 45 seconds. At the 8:00 minute mark, the FDNY ambulance drove away without speaking to any officers. At the 9:15 minute mark, Lt. Sample told the EMTs, "Just stand by. We're probably going to EDP them." At the 11:00 minute mark, Lt. Sample told § 87(2)(b) and § 87(2)(b) "I'm just going to let both of you know right now. Both of you are going to the hospital now. Now we're making the determination that both of you are going to the hospital." § 87(2)(b) said, "You can't take us against our will," and Lt. Sample replied, "Either you get into the ambulance or we're going to put you in the ambulance." At the 11:20 minute mark, Lt. Sample ordered officers to "put them in cuffs please." At the 11:50 minute mark, Lt. Sample told § 87(2)(b) "You're going to the ambulance, you're going to get checked out. But right now, for your safety and for ours, we're going to cuff you." At the 12:50 minute mark, § 87(2)(b) told PO Anopolsky that she did not want to go to the hospital, and Lt. Sample replied, "There's no choice right now." At no point did Lt. Sample or any other officer appear to speak with the FDNY EMS supervisor on the scene.

PO Anopolsky's BWC (BR 04), beginning at the 14:35 minute mark, showed § 87(2)(b) in the ambulance ask PO Anopolsky why they were placed in handcuffs. PO Anopolsky replied that it was because they were not in a proper state to care for themselves and needed to go to the hospital. At the 35:35 minute mark, PO Anopolsky explained that they were handcuffed because Lt. Sample determined that they were a risk to themselves and others. § 87(2)(b) replied that she did not act violently, and that § 87(2)(b) was simply sitting on the steps. At the 41:07 minute mark, PO Anopolsky said that they were not under arrest.

§ 87(2)(b) testified (BR 07) that after exiting the stationhouse, she decided to call 911 because her shoulder was hurt, and she noticed that § 87(2)(b) was hyperventilating. When EMS arrived, two EMTs went inside to speak with officers, and PO Anopolsky came outside to

speak with § 87(2)(b) and § 87(2)(b) in Russian. A few minutes later, Lt. Sample came outside with several officers and told them to place § 87(2)(b) and § 87(2)(b) in handcuffs. Lt. Sample said that both of them were going to be removed to the hospital, and they were brought into the back of the ambulance. PO Anopolsky accompanied them in the ambulance, and they were transported to the hospital. § 87(2)(b) and § 87(2)(b) were evaluated individually and released from the hospital together later that night.

FDNY EMS Supervisor Lt. Timothy Anson testified (BR 15) that he responded to a request from two EMTs for a supervisor to come to the 19th Precinct Stationhouse. When he arrived, Sup. EMT Anson observed the EMTs trying to speak with two women who were clearly intoxicated. Sup. EMT Anson knew they were intoxicated because they were behaving incoherently and he could smell alcohol on them. Based on his experience and what he observed from the women, Sup. EMT Anson determined that they were not able to care for themselves and needed to be removed to the hospital.

The responding EMTs were from § 87(2)(b) and did not respond to multiple follow-up requests regarding subpoenas to interview them regarding the incident.

Lt. Sample testified (BR 11) that he observed § 87(2)(b) and § 87(2)(b) behave aggressively towards the T/S operator when they first arrived at the stationhouse. Lt. Sample did not remember the specific complaint that they were alleging, but he learned that it involved a former boyfriend of § 87(2)(b). Lt. Sample decided to have Sgt. Williams from the domestic violence unit bring the women upstairs and take a statement. Approximately 15 minutes later, Lt. Sample saw Sgt. Williams and PO Morel physically escorting the women out of the stationhouse through the front entrance. Lt. Sample described the women as being loud and combative towards Sgt. Williams, and they repeatedly accused Sgt. Williams of kicking them out because they were Russian. After being brought outside, the women stood outside the front entrance and refused to leave. The women laid down on the steps outside the front entrance and went limp. At that point, Lt. Sample decided that they were a danger to themselves because they refused to leave, went limp outside on the steps, and repeatedly claimed that the officers were kicking them out of the stationhouse because they were Russian and therefore called for an ambulance. He did not notice a scent of alcohol or slurred speech that would suggest they were intoxicated. He described their behavior as irrational and not normal. When EMS arrived, the women refused to go into the ambulance. Lt. Sample instructed officers to pick them up off the steps and bring them to the ambulance. Lt. Sample did not remember if they were placed in handcuffs, but he testified that it would have been standard protocol to do so for safety purposes. Lt. Sample did not remember what hospital they were transported to, but he sent PO Anopolsky in the ambulance to escort them.

During his CCRB interview, Lt. Sample clarified that at the time of the incident, he was not aware that the crime being alleged was of a sexual nature. Lt. Sample acknowledged that there is a difference between a visibly upset individual who is the victim of a sexual crime, and an overly disruptive individual who is an EDP that needs to be removed to the hospital. In this instance, Lt. Sample determined that § 87(2)(b) and § 87(2)(b)'s behavior was due to them being EDPs. Specifically, Lt. Sample cited the women's repeatedly threatening to call the CCRB, threatening to call IAB, acting overly aggressive, and accusing the officers of being racist.

Sgt. Williams testified (BR 08) that she did not think § 87(2)(b) was an EDP during their interaction inside the stationhouse. Sgt. Williams left shortly after escorting § 87(2)(b) and § 87(2)(b) outside. When she returned to the stationhouse, EMS had already arrived, and Sgt. Williams learned that the decision had been made to remove § 87(2)(b) to the hospital. She assumed that the decision was made by Lt. Sample but did not know for sure. Sgt. Williams did not

know if § 87(2)(b) was also being removed to the hospital, or if she had decided to accompany her sister in the ambulance. Sgt. Williams did not observe § 87(2)(b) or § 87(2)(b) become physical with her or any other officers, and she did not tell anyone that they had become physical with her. Sgt. Williams did not think that either woman was intoxicated during the incident. She did not smell the scent of alcohol on them at any point, and neither woman mentioned taking any substances.

PO Anopolsky (BR 10) testified that he was instructed to escort § 87(2)(b) and § 87(2)(b) to the hospital in handcuffs by Lt. Sample because they were considered a threat to harm the EMTs and others around them. PO Anopolsky did not remember observing any behaviors that suggested they were a threat to harm those around them, and he did not observe either woman become physical with any officers. PO Anopolsky heard an officer say that they had become physical with Sgt. Williams and PO Morel, but he did not remember who said it.

PO Morel (BR 09) testified that § 87(2)(b) and § 87(2)(b) were behaving erratically inside the stationhouse, but they did not appear to be a danger to themselves or others. PO Morel did not observe either woman become physical with other officers, and they did not become physical with him at any point. PO Morel did not remember observing any signs that suggested either woman was intoxicated. He did not find out that § 87(2)(b) and § 87(2)(b) were removed to the hospital until later on after the incident, and he never learned why they were taken to the hospital.

Aided Reports #§ 87(2)(b) and #§ 87(2)(b) confirm that § 87(2)(b) and § 87(2)(b) were removed to § 87(2)(b) as EDPs at 8:43 p.m. on March 11, 2022 (BR 16). No ACR was obtained because § 87(2)(b) declined to provide signed HIPAA forms to the investigation.

An emotionally disturbed person is a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner in which a police officer reasonably believes are likely to result in serious injury to themselves or other, Patrol Guide Procedure 221-13 (BR 17).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the second CCRB complaint to which § 87(2)(b) has been a party (BR 18).
 - § 87(2)(b)
- Sgt. Williams has been a member of service for 16 years and has been a subject in four CCRB complaints and six allegations, one of which was substantiated (BR 19).
 - 202102864 involved a substantiated failure to provide a Right to Know Act business card. The Board and the NYPD both recommended and imposed formalized training.
 - § 87(2)(g)
- PO Morel has been a member of service for three years and this is the first CCRB complaint he has been a subject in (BR 20).
- Lt. Sample has been a member of service for 18 years and has been a subject in 12 other CCRB complaints and 28 allegations, two of which were substantiated (BR 21).
 - 201602595 involved a substantiated vehicle stop allegation. The Board recommended charges and APU closed it as retained, without discipline. The NYPD imposed no penalty.
 - 201705711 involved a substantiated allegation of physical force. The Board recommended charges, but the APU trial returned a not guilty verdict.
 - 201901349 involved an unsubstantiated allegation of a threat of removal to hospital.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A request for the record of a Notice of Claim being filed regarding this complaint was sent on October 7, 2022. The results will be added to this report upon receipt.

Squad: 6

Investigator:	<u>Samuel Edison</u>	<u>Investigator Edison</u>	<u>10/18/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>10/18/2022</u>
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Signature

Print Title & Name

Date